

where the plaintiff alleges the right to recover a sum certain or a sum that can be made certain by calculation. [Citation.]” (*Id.* at p. 179.) The *Teselle* court further observed that “[a]n accounting is a ‘species of disclosure, predicated upon the plaintiff’s legal inability to determine how much money, if any, is due.’” (*Id.* at p. 180.)

Teselle requires circumstances in which one party, by virtue of a special relationship with the other, has come into possession of money or property that she or he is required to surrender to the latter.

Plaintiff has not met her initial burden to show that Defendant is in possession of her money or property such that she would be entitled to an equitable accounting. Plaintiff has not adduced any evidence that Defendants owe her money. “In an action for an accounting, the agent has the burden of proving that he paid to the principal or otherwise properly disposed of the money or other thing which he is proved to have received for the principal.” (*Kennard v. Glick* (1960) 183 Cal.App.2d 246, 251.) The absence of evidence in support of Plaintiff’s contention that she is owed a balance is reflected in her discovery responses. (See (Cisz Decl., Ex. I (Responses to Special Interrogatory Nos. 1 and 20).)

Plaintiff is not entitled to summary adjudication of her claim for an accounting.

Evidentiary Objections

The Court rules only on those objections material to the Court’s ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).) Here, there were none.

14. 9:00 AM CASE NUMBER: MSC19-02076
CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC
HEARING ON SUMMARY MOTION HEARING ON SUMMARY MOTION FILED BY: CENTRAL EAST BAY
IPA, MEDICAL GROUP INC
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Central East Bay IPA Medical Group, Inc. dba Muir Medical Group IPA, Defendant Kenneth Bowers, MD, Defendant Ute Burness, and Defendant Steven Kaplan, MD (collectively “Defendants”)’s motion for summary judgment, or in the alternative summary adjudication. The motion relates to Plaintiff Maureen Mbadike-Obiora, MD (“Plaintiff”)’s Fifth Amended Complaint (“5th AC”) for (1) breach of contract (medical billing services agreement) (against IPA and Burness); (2) breach of contract (primary care provider agreement) (against IPA); (3) accounting (against IPA and Burness); (6) breach of implied covenant of good faith and fair dealing (against IPA and Burness); (7) intentional and negligent representation (against IPA and Kaplan); and (8) declaratory relief (against Burness and Bowers).

For the following reasons, Defendants’ motion for summary judgment is **granted**.

Legal Standard

Code of Civil Procedure (“CCP”) §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant’s initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Factual and Procedural Background

Plaintiff Maureen Mbadike-Obiora, MD is a family practice physician with a clinic in Concord. Plaintiff was shareholder of Defendant Central East Bay IPA Medical Group, dba Muir Medical Group IPA (Muir IPA). Defendant Kenneth Bowers is a member of the Board of Directors of Muir IPA and Defendant Ute Burness is the Chief Executive Officer of Muir IPA.

On or about October 9, 2008, Plaintiff purchased a clinic in Contra Costa County from Dr. Bernard Wolf, a shareholder of Muir IPA. Along with the purchase, Plaintiff executed a Primary Care Provider Agreement, Common Stock Shareholder Agreement, Common Stock Subscription Agreement, and a Participating Care Physician Exclusivity Agreement with Muir IPA. Plaintiff also purchased a share of Muir IPA.

On or about May 9, 2014, Muir IPA chose Plaintiff for a pilot billing services program. Plaintiff alleges that under the pilot program, she was unable to generate sufficient revenue to operate her office and pay herself a salary. Plaintiff complained about the low revenue and requested monthly accounting statements. On or about October 15, 2015, Plaintiff alleges she discovered she was not being reimbursed for procedures performed on capitation patients over the past year. The Court understands that capitation is a payment arrangement for health care service providers that pays a fixed amount of money per patient per unit of time paid in advance to the physician (or medical group) for the delivery of health care services.

Plaintiff filed the Third Amended Complaint on August 24, 2020. On May 11, 2022, Plaintiff filed a one-paragraph Amendment to Complaint to substitute Alice Kugler as Doe 2.

This Court sustained Defendant Alice Kugler's demurrer to the Third Amended Complaint, which alleged claims against her for declaratory relief, breach of the implied covenant of good faith and fair dealing, and breach of fiduciary duty. With respect to the declaratory relief claim, the Court found that Plaintiff had not alleged specific factual allegations against Defendant Kugler that demonstrated an actual controversy between Plaintiff and Kugler. With respect to the breach of the implied covenant claim, the Court concluded that Plaintiff had not alleged the existence of a contract between Plaintiff and Kugler or any contract that Kugler is a party to. Finally, with respect to the breach of fiduciary duty claim, the Court concluded that Plaintiff had not alleged facts showing a fiduciary duty either imposed by law or undertaken by agreement.

The Fourth Amended Complaint included new claims against Defendant Kugler for (1) breach of contract, (2) accounting, and (5) intentional and negligent misrepresentation in addition to revised versions of the previously alleged claims for (3) breach of fiduciary duty, (4) breach of the implied covenant of good faith and fair dealing, and (6) declaratory relief.

The Court granted Defendants' motion to strike Plaintiff's causes of action for (1) breach of contract, (2) accounting, and (5) intentional and negligent misrepresentation as well as the prayer for relief at Item II and Item III from the Fourth Amended Complaint for being beyond the scope of the Court's prior order. At the same time, the Court sustained Defendants' demurrer to the causes of action for (3) breach of fiduciary duty, (4) breach of the implied covenant of good faith and fair dealing, and (6) declaratory relief.

Plaintiff filed the Fifth Amended Complaint October 19, 2023. Defendants filed a Demurrer to that Complaint.

In an order after hearing filed February 27, 2024, the Court sustained-in-part and overruled-in-part Defendants demurrer to Plaintiff's 5th Amended Complaint. The Court sustained without leave to amend Defendants' demurrer to the fourth cause of action for breach of fiduciary duty, the fifth cause of action for aiding and abetting breach of fiduciary duty, Defendant Kugler's demurrer to the sixth cause of action for breach of implied covenant of good faith and fair dealing, Defendant Kugler's demurrer to the seventh cause of action for intentional and negligent misrepresentation, and Defendant Kugler's demurrer to the eighth cause of action for declaratory relief. As a consequence, no substantive claims remained against Kugler.

Analysis

(1) breach of contract (medical billing services agreement) (against IPA and Burness)

"A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach." (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 402 citing *CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.)

Defendants argue that there is no triable issue of fact over the existence of a written contract

because a written contract does not exist.

Plaintiff's first cause of action against IPA and Burness alleges that "Plaintiff entered into a written agreement with Defendants MMGIPA and Ute Burness (Doe 1) to participate in a pilot program whereby Defendants would submit Plaintiff's medical billing claims on patients to insurance companies and/or their clearing houses for processing, including all secondary and tertiary claims, and collect outstanding billing balances from patients." (5thAC at ¶ 65.)

Defendants offer the testimony of several witnesses who stated that they had no knowledge regarding any written billing services agreement with Plaintiff. To wit, Ofelia Mynock, who worked for the IPA and provided billing services to Plaintiff, testified that she did not recall having seen any written agreements between Dr. Obiora and the IPA about billing services. (Mynock Depo. at 243:2-9.) Kenneth Bowers also testified that he did not sign a written contract to have the billing services people take on his billing and submit it to Epic. (Bowers Depo. at 69:9-16.) Additionally, Ute Burness offered testimony that he is not aware of any written contract or agreement between IPA and Plaintiff or himself and Plaintiff regarding any medical billing services that he or IPA would provide Plaintiff. (Burness Decl. at ¶¶ 4,5.) Defendants have met their initial burden in establishing there is no issue of triable fact because no written contract exists, and the burden now shifts to Plaintiff to provide sufficient facts and evidence that there is a dispute as to a material fact as to the existence of a written contract.

The Court notes that while the opposition and reply reference a Mbadike-Obiora Declaration, said declaration is neither in the exhibits in support of Plaintiff's Opposition to Defendants' Motion nor does it otherwise appear in the Court file. However, as best the Court is able to discern its content from Plaintiff's separate responding statement of material facts in opposition, Plaintiff's memorandum of points and authorities in opposition, and Defendants' reply in support of their motion, it would be inadequate to establish a written contract for billing services. The same is true with respect to Plaintiff's declaration in support of her own motion for summary judgment. Therein, Plaintiff declares that "[o]n or about January 14, 2025 [sic], Alice Kugler and Heather Martin, both employees of Central East Bay IPA Medical Group, Inc. dba Muir IPA came to my office with the billing services agreement for the third-party billing program Muir IPA was setting up. Alice Kugler had me sign the pilot billing services agreement and told me that a copy of the fully executed agreement will be sent to me after Muir IPA's CEO Ute Burness ha[d] signed the agreement, but the agreement was never sent to me." (Mbadike-Obiora Decl. in support of Plaintiff's Motion for Summary Judgment at ¶¶ 4,5.) This is also consistent with Plaintiff's deposition testimony. (See Mbadike-Obiora Depo. at 77:4-10 [testifying that she signed a written agreement]; and 77:15-22 [Heather Martin and Alice Kugler "brought documents to me that I signed."].)

However, recent testimony by Alice Kugler refutes Plaintiff's assertion. Ms. Kugler testified that she did not take any agreement with her for Dr. Obiora to sign when she went to see her with Heather Martin and that IPA did not prepare any documents for the billing program for the doctors to sign. (See Kugler Depo. at 56:14-21.) (Although this evidence was provided on reply, the court has discretion to consider it. (See *Los Angeles Unified School Dist. v. Torres Construction Corp.* (2020) 57 Cal.App.5th 480, 499 ["A trial court has discretion to consider new evidence in reply papers supporting a summary judgment motion as long as the opposing party has notice and an opportunity

to respond. [Citation.] Evidence which is used to fill gaps in the original evidence created by the opposition is particularly appropriate to consider in a reply.”)) Plaintiff had notice of Defendants’ reply evidence more than a week before the originally scheduled hearing.)

Plaintiff’s affirmative evidence in support of her allegation that she executed a written billing agreement does not create a genuine dispute of material fact with respect to this issue. First, she presents a letter dated November 16, 2015 from Alice Kugler and the Muir Medical Group IPA Inc. The letter states in part “[t]his letter is to ensure that we are in complete understanding of the IPA’s obligation to you in reference to billing” and continues “we have agreed to continue to work your outstanding accounts receivables (AR) attained through October 31, 2015, for a period of 90 days ending January 31, 2016.” The Court understands Plaintiff’s argument to be that the word “agreed” is an oblique reference to a written agreement. The Court cannot agree.

Plaintiff also relies on the “Addendum For NextGen® Enterprise Chart” dated September 28, 2009 but Plaintiff’s argument as to how this agreement evinces the Pilot Billing Contract she alleges she executed in 2015 is attenuated. Essentially, Plaintiff argues that it was custom and practice “whereby the IPA would first obtain Dr. Mbadike-Obiora’s signature before Ute Burness ha[d] executed the agreement, and often never send the fully executed agreement to Dr. Mbadike-Obiora.” (Opp. at 13:7-9.) Even assuming *arguendo* that this was the standard practice between the parties, this does not create a genuine dispute of material fact as to whether there was a written billing agreement.

Based on the evidence and arguments provided by Plaintiff, Plaintiff does not meet her burden to show there is a triable issue of fact as to whether there was a written contract. Plaintiff’s opposition and exhibits submitted raise at best a triable issue of fact as to whether there was an oral contract. However, the problem with the existence of an oral contract is that Plaintiff does not plead the existence of an oral contract in the Fifth Amended Complaint, and an action here on an oral contract is time barred—the 5th AC alleges that the breaches occurred in 2015 (see 5th AC at ¶ 69 [breach beginning on or about March 15, 2015], the latest breach Plaintiff identifies in her discovery responses is 2015 (Plaintiff’s Supplemental Form Interrogatory No. 50.2 Response), and the statute of limitations for breach of an oral contract is 2 years. (CCP § 339(1).)

Because the Court concludes that there is no genuine dispute of material fact that there is a written contract (and because an oral contract is both unpled and time-barred) the Court need not reach the additional ground that Plaintiff cannot establish damages.

Defendants are entitled to summary adjudication of Plaintiff’s claim for breach of medical billing services agreement.

(2) breach of contract (primary care provider agreement) (against IPA)

Defendants move for summary judgment on Plaintiff’s claim for breach of the Primary Care Provider Agreement on the grounds that (1) Plaintiff waived and released all contract claims against the IPA other than the alleged Billing Contract claim alleged in her Third Amended Complaint and (2) the claim is otherwise not allowed under the terms of the Primary Care Provider Agreement.

In opposition, Plaintiff argues that her claim for Breach of the Primary Care Provider Agreement was pled in her Third Amended Complaint and therefore excluded from the settlement and release in C18-

02543 and that Defendants failed to allege waiver in their answer as an affirmative defense.

As a threshold issue, Defendants are not precluded from asserting waiver as a basis for summary judgment. “[C]ourts generally have allowed an affirmative defense to be asserted for the first time in a motion for summary judgment absent a showing of prejudice.” (*Atkins v. St. Cecilia Catholic School* (2023) 90 Cal.App.5th 1328, 1341.) There is no showing of prejudice here.

Defendants’ waiver argument is based on a settlement in Case Number MSC18-02543. (Cisz Decl. Ex. K.) The Settlement specifically references the instant case, described as the “Obiora Action,” and required that Plaintiff eliminate “the pending causes of action for declaratory relief against the IPA and Ute Burness and eliminates the following prayers for relief: (i) For declaratory judgment stating that the Physician Common Stock Subscription Agreement barred Defendant MMGIPA from terminating Plaintiff’s relationship with JOHN MUIR, absent a written modification of the Agreement with the consent of both Plaintiff and MMGIPA; (ii) For declaratory judgment stating that the Plaintiff’s PCP Exclusivity Agreement barred Defendant MMGIPA from terminating Plaintiff’s Common Stock Shareholder Agreement by requiring that Plaintiff enter another exclusivity agreement with HILL when Plaintiff’s PCP Exclusivity Agreement was still in effect; and (iii) For declaratory judgment stating that it was unreasonable and arbitrary for Defendants MMGIPA and UTE BURNESS to require that Plaintiff enter an exclusive PSA with HILL, which would require Plaintiff to leave BASS and turn over her billing services again to Defendants who had mismanaged Plaintiff’s billing and were incapable of managing and billing services under a 2015 pilot program.” (Settlement Agreement at § 1(D).)

Additionally, the Settlement Agreement included broad waiver and release language:

4. Mutual Release of all Claims.

A. Definition of Claims. For purposes of this Section 4, "Claims" shall mean any and all past, present and future rights, claims, demands, duties, obligations, causes of action, injuries, damages, losses, actions, costs, commissions, attorneys' fees, license fees, loss of services, loss of opportunity, expenses and compensation, whether known or unknown, whether at law, equity, or otherwise, and whether sounding in tort, contract, or otherwise, howsoever arising out of or related to the facts and circumstances of the First Amended Complaint in the Action. **For purposes of this Section 4, claims remaining in the Obiora Action after the dismissal of the Declaratory Relief claim and Prayers for Relief, as set forth in Section 1.D., above, are excepted from the definition of Claims.**

B. Release of Defendants and Defendant-Related Parties. Except for the rights and obligations set forth in, created by, or reserved by this Agreement, as of the Effective Date, Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, hereby release and forever discharge the Defendants and Defendant-Related Parties, from any and all Claims (the "Items Released by Plaintiffs and Plaintiff-Related Parties").

Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, certify that they have read California Civil Code Section 1542, which states as follows:

A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS THAT THE

CREDITOR OR RELEASING PARTY DOES NOT KNOW OR SUSPECT TO EXIST IN HIS OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE AND THAT, IF KNOWN BY HIM OR HER, WOULD HAVE MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR OR RELEASED PARTY.

Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, hereby waive the application of California Civil Code Section 1542. Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, acknowledge that they understand the significance and consequence of this waiver of Section 1542 of the California Civil Code is that even if they should eventually suffer additional damages based on facts or incidents arising out of or related to the Items Released by Plaintiffs, they will not be permitted to make any claim for those damages. Further, Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, acknowledge that they intend these consequences even as to claims that may exist as of the Effective Date of this Agreement but which they do not know exist, and which, if known, would materially affect their decision to execute this Agreement, regardless of whether the lack of knowledge is the result of ignorance, oversight, error, negligence, or any other cause.

Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, represent and warrant that none of them have any Claims pending against any of the Defendants or Defendant-Related Parties, other than those pending in the Action and the Obiora Action, whether in any court, agency, arbitration, or other proceeding of any kind. Except with respect to the interpretation or enforcement of this Agreement, Plaintiffs, on their own and on behalf of the Plaintiff-Related Parties, hereby covenant, that they will not, at any time hereafter, either directly or indirectly initiate, assign, maintain or prosecute, or in any way aid or assist in the initiation, maintenance or prosecution of any Claims against the Defendants or Defendant-Related Parties, unless obligated to do so by a valid subpoena or order of any judge or arbitrator.

(Cisz Decl. at ¶ 14, Ex. K § 4 [emphasis added].)

The Settlement Agreement also includes a provision that except for the agreement and the agreements then alleged in the case “any and all agreements, understandings, rights, duties, or obligations between any of the Plaintiffs, on one hand, and any of the Defendants, on the other hand, as alleged in the Action are hereby terminated and are of no further force and effect.” (Terms of the Agreement § 3.)

Notwithstanding this language, in the Fourth Amended Complaint filed on February 2, 2023, after executing the Settlement Agreement in Case No. C18-02543, Plaintiff added a claim for breach of the Provider Agreement. Plaintiff argues that Breach of the Primary Care Provider Agreement was included in the Third Amended Complaint (and therefore a surviving claim under the Settlement Agreement), relying on paragraph 37 and Exhibit 1 of the same. Paragraph 37 of the TAC reads in full:

On or about October 15, 2015, Plaintiff discovered that procedures she performed on capitation patients were not being reimbursed. Consequently, Plaintiff sent an email to DOE-1 Defendant UTE BURNES, Defendant KENNETH BOWERS, MMGIPA Director of Practice Management, Alice Kugler, and, Steven Kaplan, MD, President and

Chairman of the Board of Directors of MMGIPA, stating as follows:

I am writing this email, to confirm the information that I received today from Ofelia that the IPA does not reimburse procedures for capped patients.

I clearly remember when lectures were arranged with Specialists, Dermatologist, Podiatrist, Orthopedist and we were encouraged to perform dermatological procedures, treat ingrown toe nails, and give joint injections. It has just come to my attention that I am not being reimbursed for all the procedures I have performed for capped patients for the last 1 year.

I did not receive any documentation that states we should not perform these procedures. As a sole proprietor, the write offs are a colossal loss not to mention the issue I have had with billing and cash flow since going on to Epic.

These losses need to be addressed and a communique sent out as I am sure there are other providers still performing procedures on capped patients.

Thank you for your anticipated cooperation in this matter.

(Exhibit 9, Plaintiff's October 15, 2015 Email to Ute Bumess.)

Although the Provider Agreement is attached to the Third Amended Complaint, it is only briefly referenced: first, in the factual background to state that she executed the agreement in connection with her purchase of a clinic in Contra Costa County from Dr. Wolf, a shareholder of MMGIPA. (TAC at ¶ 8.) Next, to state that she was terminated under that Agreement on January 2, 2018. (*Id.* at ¶ 55.) Nowhere in the TAC does she allege breach of the Primary Care Provider Agreement. This is alleged for the first time in the Fourth Amended Complaint as a separate cause of action for Breach of Contract [Primary Care Provider Agreement]. As a consequence, at the time Plaintiff executed the Settlement Agreement, Plaintiff did not have a pending cause of action for breach of contract of the Primary Care Provider Agreement. Furthermore, the terms of the Settlement Agreement clearly terminated the Primary Care Provider Agreement.

Defendants are entitled to summary adjudication of Plaintiff's claim for breach of the Primary Care Provider Agreement.

(3) accounting (against IPA and Burness)

Defendants argue that Plaintiff's accounting claim is barred because her breach of contract claims fail and would otherwise be time-barred. In opposition, Plaintiff argues that her cause of action for accounting is an independent action subject to a four-year statute of limitation, relying on this Court's order Sustaining in Part and Denying in Part Defendants' Demurrer to the Second Amended Complaint. Plaintiff argues that "the law of the case is that an accounting is an independent equitable claim that does not require breach of contract, which is a claim at law, to be viable, and the applicable statute of limitation on an accounting claim is four years." (Opp. at 28:7-11.)

Plaintiff misunderstands both the law of the case doctrine and this Court's prior order. "The doctrine of 'law of the case' deals with the effect of the *first appellate decision* on the subsequent *retrial or*

appeal: The decision of an appellate court, stating a rule of law necessary to the decision of the case, conclusively establishes that rule and makes it determinative of the rights of the same parties in any subsequent retrial or appeal in the same case. (*Morohoshi v. Pac. Home* (2004) 34 Cal.4th 482, 491 [quoting 9 Witkin, Cal. Procedure (4th ed. 1997) Appeal, § 895, p. 928] [emphasis original].) “Law of the case” does not apply to prior demurrer orders by the trial court.

Furthermore, while the Court may have concluded in its prior order that, under *Teselle v. McLoughlin*, a cause of action for an accounting does not necessarily require a contract for a valid accounting claim, on this motion Defendants have introduced Plaintiff’s discovery responses which support a conclusion that here, her claim for accounting is ancillary to her claims for breach of contract.

Specifically, when Plaintiff’s response to special interrogatory no. 32 is read in conjunction with her response to form interrogatory no. 50.2, it is clear that her claim for accounting is based on her breach of contract claims. Form interrogatory no. 50.2 asked “was there a breach of any agreement alleged in the pleadings? If so, for each breach describe and give the date of every act or omission that you claim is the breach of the agreement.” Special interrogatory no. 32 then asks “for each service or procedure stated in your response to form interrogatory no. 50.2, state the total amount of payment you contend you should have received, and describe all facts in support.” Plaintiff responded in full: “on advice of counsel, Plaintiff is unable to state the total amount of payment she should have received as said information is not in her possession, custody or control at this time and **forms the basis of her claim for accounting.**” (emphasis added.)

Because Plaintiff’s breach of contract claims fail (as described further, above) Defendants are also entitled to summary adjudication of Plaintiff’s claim for accounting.

(6) breach of implied covenant of good faith and fair dealing (against IPA and Burness)

Based on the foregoing, the Court also finds that Defendants are entitled to summary judgment on Plaintiff’s cause of action for breach of the implied covenant of good faith and fair dealing. “The prerequisite for any action for breach of the implied covenant of good faith and fair dealing is the existence of a contractual relationship between the parties, since the covenant is an implied term in the contract.” (*Green Valley Landowners Ass’n v. City of Vallejo* (2015) 241 Cal.App.4th 425, 433.) In the absence of a written contract for billing services (and because an oral contract is both unpled and time-barred), and the termination of the Primary Care Provider Agreement under the terms of the Settlement Agreement in case no. MSC18-02543, there is no covenant of good faith and fair dealing between the parties. Defendants are entitled to summary adjudication on this claim.

(7) intentional and negligent representation (against IPA and Kaplan)

Defendants move for summary adjudication against Plaintiff’s claim for intentional and negligent representation on several grounds, including that Plaintiff cannot establish the required elements and that the claim is time-barred. Plaintiff does not respond substantively to these arguments. Instead, Plaintiff argues that Defendant Bowers and Kaplan are no longer parties in this action.

Where a party fails to respond to an argument in an opposition with citations to legal authority, such failure to respond is deemed a concession. (*Heglin v. F.C.B.A. Market* (1945) 70 Cal.App.2d 803, 806; see also *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party

fails to oppose a ground for a motion “it is assumed that [nonmoving party] concedes” that ground[.]

Furthermore, Defendant Bowers and Defendant Kaplan answered the Fifth Amended Complaint on March 14, 2024. While Defendant IPA and Ms. Burness filed an amended answer following a motion for leave to amend this did not have the legal effect of extinguishing Defendant Bowers and Defendant Kaplan’s answer. (The Court also notes that Plaintiff requested default as to both Defendant Bowers and Kaplan which was rejected with the stated reason that “Default cannot be entered on Defendant as an Answer was Filed 03/14/24.”)

Defendants are entitled to summary adjudication on Plaintiff’s claim for intentional and negligent representation.

(8) declaratory relief (against Burness and Bowers)

Finally, Defendants move for summary adjudication on Plaintiff’s claim for declaratory relief on several grounds: first, to the extent that Plaintiff is seeking a declaration that Dr. Bowers violated his fiduciary duties to Plaintiff this is precluded by the loss of Plaintiff’s breach of fiduciary duty claim; second, to the extent Plaintiff seeks a declaration that she entered into a billing services agreement, it is undisputed that there is no written billing services contract.

In opposition, Plaintiff argues that “Defendant Kenneth Bowers has no standing to bring a motion for summary judgment or summary adjudication on the declaratory relief cause of action because he is no longer a party to this action” and “Defendant Ute Burness cannot establish that there is no triable issue of fact that she entered into a contract with Dr. Mbadike Obiora when she claims she has no recollection of the event.” (Opp. at 32:11-14 and 32:19-22.)

These arguments are not substantively responsive to Defendants’ moving arguments. Furthermore, Plaintiff is incorrect that Defendant Bowers is no longer a party to this action.

Defendants are entitled to summary adjudication on Plaintiff’s declaratory relief claim.

Evidentiary Objections

The Court rules only on those objections material to the Court’s ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).) Here, there were none.

15. 9:00 AM CASE NUMBER: MSC21-02266
CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.
HEARING ON DEMURRER TO: PLAINTIFF LAURA WITTENBERG'S 4TH AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Defendant East Bay Municipal Utility District’s Demurrer to Plaintiff Laura Wittenberg’s Fourth Amended Complaint is **sustained without leave to amend**.